

House File 189

S-3176

1 Amend the amendment, S-3171, to House File 189, as amended,
2 passed, and reprinted by the House, as follows:

3 1. Page 2, after line 18 by inserting:

4 <c. The authorities in charge of a nonpublic school shall
5 allow a student who resides within the school district where
6 the nonpublic school is located, or within a contiguous
7 school district, and who is enrolled in a school district,
8 charter school, or innovation zone school, to participate
9 in any extracurricular interscholastic athletic contest or
10 competition that is provided by the nonpublic school pursuant
11 to the terms of an agreement between the authorities in charge
12 of the nonpublic school and the board of directors of the
13 school district or the governing body of the charter school or
14 innovation zone school that provides for the eligibility of the
15 student, if all of the following criteria are satisfied:

16 (1) The extracurricular interscholastic athletic contest
17 or competition has not been provided by the school the student
18 attends during the two immediately preceding school years.

19 (2) The school district, charter school, or innovation zone
20 school has not entered into an agreement under section 280.13A
21 with another school district, nonpublic school, charter school,
22 or innovation zone school that provides for the eligibility of
23 students enrolled in the school district, charter school, or
24 innovation zone school to participate in the extracurricular
25 interscholastic athletic contest or competition that is being
26 provided by that nonpublic school.

27 _____. By striking page 2, line 33, through page 3, line 13,
28 and inserting:

29 <d. If the board of directors of a school district
30 or the authorities in charge of a nonpublic school have
31 established a fee for the cost of a student's participation
32 in an extracurricular interscholastic athletic contest or
33 competition, a student who is participating in a contest
34 or competition pursuant to paragraph "a", "b", "c", or the
35 student's parent or guardian, shall be responsible for the

1 payment of such fee. The amount of such fee shall not exceed
2 the amount of the fee the board of directors of the school
3 district or the authorities in charge of the nonpublic school,
4 as applicable, have established for students who are enrolled
5 in the school district or nonpublic school.

6 2. A student who is participating in a contest or
7 competition pursuant to subsection 1, paragraph "a", "b", or
8 "c", shall participate under the same conditions as a student
9 who is enrolled in the school district or nonpublic school,
10 as applicable, including meeting the school district's or
11 nonpublic school's student code of conduct requirements.>

12 _____. By renumbering, redesignating, and correcting internal
13 references as necessary.>>

14 2. By renumbering as necessary.

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